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Our ref: IM-72865

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Dear Interested Party

Request for submissions: Omnicom Group Inc.'s proposed acquisition of The Interpublic Group of Companies, Inc.

The Australian Competition and Consumer Commission (**ACCC**) is seeking your views on the proposed acquisition of The Interpublic Group of Companies, Inc. (**IPG**) by Omnicom Group Inc. (**Omnicom**) (the **proposed acquisition**).

Omnicom and IPG are both large global advertising, marketing and communications businesses, primarily supplying media buying services, and marketing and communications services. Further details are provided at **Attachment A**.

The ACCC's investigation is focused on the impact on competition. In particular, we are seeking your views on:

- how closely Omnicom and IPG compete to supply media buying services to advertisers and the level of competition provided by rival providers of media buying services
- how closely Omnicom and IPG compete to purchase advertising space from media outlets and how reliant media outlets are on such media buyers to sell advertising opportunities
- how closely Omnicom and IPG compete to supply marketing and communication services to companies and the competition provided by rival providers of media and communication services, and
- the likely impact of the proposed acquisition on prices, quality and/or service levels for media buying services and marketing and communication services in Australia.

Further issues you may wish to address are set out in **Attachment B**.

A list of Omnicom and IPG's Australian brands / subsidiaries is set out in **Attachment C**.

This matter is public and you can forward this letter to anybody who may be interested.

The legal test which the ACCC applies in considering the proposed acquisition is in section 50 of the *Competition and Consumer Act 2010*. Section 50 prohibits acquisitions that are likely to have the effect of substantially lessening competition in a market.

Please provide your response by **27 May 2025** via email to mergers@accc.gov.au with the title: *Submission re: Omnicom / IPG*. If you require more time to respond, please let us know.

If you would like to discuss the matter with ACCC officers, or have any questions about this letter, please contact mergers@accc.gov.au.

Updates regarding the ACCC's investigation will be available on the ACCC's Public Mergers Register at ([ACCC mergers register](#)).

Confidentiality of submissions

The ACCC treats sensitive information it receives during a merger review as confidential, and will not publish your submission. We will not disclose submissions to third parties (except our advisors/consultants) unless compelled by law (for example, under freedom of information legislation or during court proceedings) or in accordance with s155AAA of the Competition and Consumer Act 2010. Where the ACCC is required to disclose confidential information, we will notify you in advance where possible so that you have an opportunity to be heard. Therefore please clearly indicate if any information you provide is confidential.

Our [Informal Merger Review Process Guidelines](#) contain more information on confidentiality.

Yours sincerely



Morag Bond
General Manager
Merger Investigations

Attachment A

The acquirer – Omnicom

Omnicom is a large US-based advertising, marketing and communications holding company that operates in over 70 countries globally. In Australia, Omnicom provides a wide range of marketing and sales services, including media buying, marketing and communication services, customer relationship management and public relations. In Australia, Omnicom's brands include: DDB, TBWA, OMD Worldwide, PHD Media, Clemenger Group and Hearts & Science.

The target – IPG

IPG is a large US-based advertising, marketing and communications holding company that operates in over 100 countries globally. In Australia, IPG provides services including media buying, marketing and communication services, data and engagement solutions and public relations services. In Australia, IPG's brands include: IPG Mediabrands, Ansible, Matterkind, Universal McCann (UM), Kinesso, Reprise, Initiative, Mediahub, Acxiom, Identity Communications, IPG Rufus, Group Yellow, 303 MullenLowe and Octagon.

Proposed acquisition

On 8 December 2024, Omnicom and IPG entered into an Agreement and Plan of Merger. Under this agreement, a wholly owned subsidiary of Omnicom will be merged with, and into IPG. This subsidiary will cease to exist post-merger, and IPG will remain as a wholly owned subsidiary of Omnicom.

The proposed acquisition was publicly announced on 9 December 2024.

Areas of overlap

In Australia, Omnicom and IPG overlap in media buying and marketing and communication services.

Media Buying Services

Media buying services involve the planning and purchasing of advertising opportunities across various media types, including television, radio, print, digital services and out-of-home sites (for example billboards), on behalf of clients (advertisers).

Media buying services includes both:

- the purchase of advertising opportunities from media outlets, and
- the on-selling of advertising opportunities to advertisers. Some media buying providers also on-sell advertising opportunities to smaller advertising and marketing agencies.

Marketing and Communication Services

Marketing and communications services comprise a range of services including advertising, consumer/product insight, consulting, public relations, customer relationship management, marketing, event management, brand identity and design, and specialist communications services.

Attachment B

Your business

1. Please provide a brief description of your business or organisation.
2. Please outline the reasons for your interest in the proposed acquisition, including any commercial relationship(s) with Omnicom and/or IPG. This will help us better understand your views.

Areas of overlap

3. How closely do Omnicom and IPG compete to provide services in Australia, taking into account factors such as:
 - a. range of services (for example, specific media types, such as digital, tv, print)
 - b. price, including specials, discounts and promotions
 - c. quality
 - d. customer type (for example, private or government customers), and
 - e. reputation.
4. Identify and describe the main competitors of Omnicom and IPG in the supply of:
 - a. marketing and communication services, and
 - b. media buying services.
5. Explain whether smaller providers of media buying and/or marketing and communication services are able to meet the requirements of large advertisers.
6. For advertisers purchasing marketing and communication services and/or media buying services, explain:
 - a. how you choose a provider (for example, do you go out to tender or negotiate privately?)
 - b. your considerations when selecting a provider
 - c. any challenges faced in switching providers
 - d. whether you use separate providers for marketing and communications services and media buying services, why or why not?
 - e. whether you consider self-service platforms (eg purchasing advertising opportunities via Meta Ads, Google Ads and/or the Google Display Network) a realistic alternative to obtaining media buying services from an advertising agency, and
 - f. the extent to which other intermediaries (eg ad tech intermediaries) offer services which are an effective alternative to the media buying services of the large advertising agencies.
7. For media outlets selling advertising opportunities (for example, digital, tv, radio, out-of-home, print) to advertising, marketing and communications companies (such as IPG and Omnicom), explain:
 - a. how advertising opportunities are sold (for example, quotes, direct deals, programmatic, or other industry specific sales processes), and
 - b. the role of global advertising, marketing and communications companies in acquiring advertising opportunities on your service. How common and how easy is it for advertisers to purchase advertising space and time directly on your service.

8. Describe any barriers to establishing and also expanding an advertising, marketing and communications business in Australia (for example investment costs, or existing long-term contracts).

Other information or competition issues

9. Outline any concerns you may have about the proposed acquisition, including any impact on innovation in advertising services (including the use of data driven services), the effective price (including the margin taken), service quality, or choice of providers of marketing and communication services or media buying services (or any impact on the acquisition of media opportunities).
10. Provide any additional information or comments that you consider relevant to the ACCC's consideration of the proposed acquisition.

Attachment C

Omnicom Australian brands / subsidiaries

Altcom Group Holdings Pty Limited	Levo Digital Pty Ltd
Altcom Real Estate Pty Ltd	Lonsdale Share Assistance Pty Ltd
Areteans Technology Solutions Australia Pty Ltd	Mango Communications Pty Limited
CGL Retail Services Pty Limited	Marketforce Express Pty Ltd
Channel 5 Communications Pty Ltd	Marketforce Pty Ltd
CHE Proximity Pty Ltd	Media Holdings Australia Pty Ltd
CHEP Tech Pty Ltd	Omnet Australia Pty Ltd
Clemenger Advertising Pty Ltd	Omnicom Finance ANZ Pty Ltd
Clemenger BBDO (Brisbane) Pty Ltd	Omnicom Media Group Australia Pty Ltd
Clemenger BBDO (Sydney) Pty Ltd	Optimum Media Decisions (WA) Pty Ltd
Clemenger BBDO Australia Pty Ltd	Optimum Media Direction Pty Ltd
Clemenger Field Marketing Pty Ltd	PHD Networks Pty Ltd
Clemenger Group Limited	Porter Novelli Australia Pty Ltd
Creative Activation Pty Ltd	Portview Holdings Australia Pty Limited
DDB Management Services Pty Limited	Ptarmigan Media (Australia) PTY. Ltd
DDB Melbourne Pty Limited	Quantum Market Research (Aust) Pty Ltd
DDB Sydney Pty. Ltd	Rapp Pty Limited
DDB Worldwide Pty. Ltd.	Red Handed Creative Pty Ltd
Diversified Marketing Services Pty Ltd	Red Urban Pty Limited
E Media Works Pty Ltd	Resolution Media Network Pty Ltd
EG Plus Pty Ltd	TBWA Holdings (Australasia) Pty. Ltd.
Finish Productions Pty Ltd	TBWA Melbourne Pty. Ltd
Flare Australia Pty Ltd	TBWA Services Pty Ltd
Foundation Works Pty Ltd	TBWA Sydney Pty Ltd
	Team X Australia PTY LTD
GRA Partners Pty Limited	Traction Interactive Pty Limited
GRACosway Pty Ltd	Tracy Locke Pty Limited
Hall & Partners Pty Ltd	Traffik Marketing Pty Ltd
Hearts and Science Pty Limited	TRKKN Australia Pty Ltd
Interbrand Australia Pty Ltd	

IPG Australian affiliates / subsidiaries

2Print Pty Ltd (Affiliate)	IPG Acxiom Australia Pty Ltd
303 Design Management Pty Ltd (Affiliate) (dormant)	IPG DXTRA (Australia) Pty Ltd
303 Design Management Unit Trust (Affiliate) (dormant)	IPG Rufus Pty Ltd
303 MullenLowe Australia Pty Limited (Affiliate)	Kinesso Pty Ltd
ACN 077 757 307 Pty Ltd	Lansky Enterprises Pty Ltd (Affiliate)
Ansible Pty Ltd	Mediabrand Australia Pty Ltd
Baylodge Enterprises Pty Ltd (Affiliate)	Mediahub Worldwide Asia Pacific Pty Limited

Identity Communications Pty Ltd	Mercury Mobility Pty Ltd
Initiative Media Australia Pty Ltd	Milkmoney Pty Ltd (inactive)
Interpublic Australia Holdings Pty Ltd	Orion Trading Australia Pty Ltd
Interpublic Australia Traders Partnership	FCB Six Australia Pty Ltd (inactive)